

Form No.HCJD/C-121

ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

W.P.No.29938 of 2014

Muhammad Yaqub

VS

Mst. Kaneez Fatima etc.

S.No. of order/ proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel, where necessary
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13.11.2014 Raja Faisal Hayat Janjua, Advocate for the petitioner.

The instant petition is directed against the order dated 29.10.2014 passed by the learned Judge Family Court, Khushab whereby order for interim maintenance allowance was passed.

2. The facts in brief necessary for the disposal of instant petition are that respondents No.1 to 4 filed a suit for recovery of maintenance allowance and dowry articles against the petitioner before the learned Judge Family Court, Khushab. The petitioner entered his appearance and submitted written statement whereby the assertions contained in the plaint were controverted. During proceedings, the learned trial Court vide order dated 29.10.2014 proceeded to fix the interim maintenance to the following effect:-

“Divorce between the parties has already been effected. So, efforts for pre-trial reconciliation ended in smoke. Affidavit has been filed by defendant. Plaintiff stated that minor plaintiff No.3 Muhammad Aaqib is in custody of defendant. So, he is not entitled any interim maintenance allowance. Admittedly, minor Mst. Saira Batool and Abdul Aziz are daughter and son of the defendant. So, he is legally bound to pay the

interim maintenance allowance @ Rs.1500/- each per month (in toto Rs.3000/-) before the 10th of every month till the disposal of this case.”

2. Learned counsel for the petitioner, while challenging the vires of impugned order, contends that the minors are in his custody and there was no occasion for the learned trial Court to fix the interim maintenance of the minors through the impugned order. In order to substantiate his arguments, the learned counsel has relied on an affidavit which is available on file wherein he undertook to provide all the necessary expenses for the education of minors. Further adds that while passing the impugned order, the learned trial Court has failed to apply its judicious mind and exceeded its jurisdiction and that the order has been passed in colorful exercise of the jurisdiction vested upon the learned trial Court.

3. I have heard the learned counsel for the petitioner at some length and also gone through the record with his assistance.

4. It is evident that respondent No.1 while preferring her suit for the recovery of maintenance allowance and dowry articles has categorically mentioned in para-3 of the plaint that respondents No.2 to 4 (minors) are in her custody. However, while submitting written statement, the petitioner in response to para-3 of the plaint controverted this factual aspect and asserted that the minors are actually in his custody and he is maintaining them. This clearly shows that there is serious contest between the parties about the factum of physical custody

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of the minors and same cannot be resolved without framing of issues and recording of evidence. So far as the authenticity of the affidavit about which the learned counsel has made reference during arguments, is concerned, that has been executed by the petitioner on 28.10.2014 which has no evidentiary value at this stage unless proved through mode prescribed under the law.

5. Before dilating upon the matter in issue, it would be advantageous to go through the relevant provision which mandates the learned trial Court to pass an order for interim maintenance allowance and for the said purpose, section 17-A of the Family Courts Act, 1964 reads as under:-

"17-A. Interim order for maintenance.---At any stage of proceedings in a suit for maintenance, the Family Court may pass an interim order for maintenance, whereunder the payment shall be made by the fourteenth of each month, failing which the Court may strike off the defence of the defendant and decree the suit."

6. Bare reading of the above referred provision of law clearly mandates the Family Court to pass an order for interim maintenance during the pendency of lis. The intent of the legislature behind insertion of this provision of law clearly seems to be to protect the rights of the minors so that they may not face any financial constraints during pendency of the proceedings before the learned trial Court. Not only this but the legislature, for protecting the rights of both the parties has inserted section 12-A of the Act *ibid* which is reproduced for ready reference as under:-

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“12-A. Cases to be disposed of within a specified period.”---A Family Court shall dispose of a case, including a suit for dissolution of marriage, within a period of six months from the date of institution;

Provided that where a case is not disposed of within six months either party shall have a right to make an application to the High Court for necessary direction as the High Court may deem fit.”

7. Both the above referred provisions are interlinked, so while making order under section 17-A of the Act *ibid*, the court must be having legal conscious about the period specified by section 12-A of the Act *ibid* for the disposal of the case. Furthermore, by virtue of section 12-A of the Act *ibid*, it is provided that where a case is not disposed of within six months, either party shall have a right to make an application to the High Court for necessary direction as the High Court may deem fit.

8. This Court has already held a thread bearing discussion about implication of both the above referred provisions of law in the case reported as “Muhammad Shahbaz Khalid vs. Judge Family Court, Lahore and others” (PLD 2013 Lahore 64). The relevant discussion at Page 67 in Para 7 of the judgment *supra* is reproduced below:-

“By joint reading of sections 17-A and 12-A of the West Pakistan Family Courts Act, 1964 (hereinafter to be referred as the Act), what comes out is that when the Family Court was made competent to pass an interim order for payment of maintenance, it was at the same time, made incumbent for the same Court to dispose of the case pending before it within a period of six months from the date of institution, meaning

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thereby, that the order passed under section 17-A of the Act for payment of interim maintenance would, at the most, be effective for a period of six months, which time has been allocated by virtue of section 12-A of the Act for final disposal of a lis pending before a Judge family Court and, when the maximum age of an interim order passed under section 17-A of the Act expires, the proceedings, if continued before the Family Court, the same would be considered violative to the provisions of section 12-A of the Act and this Court by virtue of proviso attached to section 12-A of the Act has been made competent to take notice of pendency of a family suit beyond the period of six months and to pass any direction as deem fit."

9. So, in the light of principle laid down above, it is established that order passed under section 17-A of the Act *ibid* can continue for a maximum period of six months and if proceedings are not finalized by the Family Court within prescribed period, this Court is competent to pass any direction as it may deem fit.

10. The order fixing the interim maintenance allowance under section 17-A of the Act *ibid* is an interlocutory order, which will eventually merged in the final decree passed by the Family Court after recording of evidence from both the sides.

11. Furthermore, by virtue of section 14 of the Act *ibid*, it is provided in the Act that appeal shall lie only against a final decision or decree passed by the Family Court and no appeal or revision shall lie against interim order passed by the Family Court. Since the legislature has specifically placed a bar in filing of appeal against an interim or interlocutory order, interference in such orders in exercise

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of writ jurisdiction would tantamount to defeat and divert the intent of legislature. By holding that it does not mean that this bar is of an absolute nature and this Court in no circumstance can invoke its jurisdiction under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 against any form of interim or interlocutory order. The only distinction is that where interim order is void, ab-initio, without jurisdiction, coram non-judice or has attained the status of a final order, no such bar can be pleaded with regard to exercise of jurisdiction as contemplated under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973. As already held that there is serious dispute about the factum of custody of minors, which factum can only be resolved after recording of evidence, this Court cannot substitute its findings on the basis of assumptions to grant premium of the same to either of the party. This Court in case reported as "Syed Shaukat Abbas. Vs. Mst. Bushra Rani and another" (PLD 1982 Lahore 281) while touching the issue in hand has laid down the principle. The relevant extract from the same at Page 283 Para 5 is reproduced as under:-

"Now, I advert to the plea of learned counsel for the petitioner that since the orders impugned herein are of far reaching consequences they can be challenged by means of a Constitutional petition. Assuming for the sake of argument that these orders would have lot of bearing on the fate of the case, of the whole gamut of dispute between the parties. Final decision on the suit would be open to appeal by virtue of section 14 of the said Act and, therefore, if the petitioner fails before the

learned Family Court, he will be able to assail, before the Appellate Court, the orders now being challenged by him. Thus, he has a remedy qua the orders in question although he will have to wait for some time to have recourse to that remedy if at all there arises a need for his so doing. He will not have to worry about those orders if the respondent's suit is dismissed by the learned Family Court. If orders like those under challenge are allowed to be taken exception to in writ jurisdiction, it will not be possible to achieve the object for which the law embodied in the said Act was framed because writ petitions relating to such orders would obviously consume a lot of time and that would result in inordinate delay in the finalization of matrimonial disputes."

12. In view of above, it is held that normally writ jurisdiction is not exercised against the interim or interlocutory orders which have been passed as per mandate of the relevant law and interference with such orders in exercise of writ jurisdiction cannot be made in an omnibus fashion to thwart the ends of justice.

13. The nutshell of the above discussion is that the order impugned herein has been passed as per mandate of section 17-A of the Act *ibid* calling no interference in exercise of writ jurisdiction. This being so, instant petition is dismissed in limine with no order as to costs.


(MIRZA VIQAS RAUF)
JUDGE

Approved for reporting


JUDGE